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ENGROSSED HOUSE
BILL NO. 1002

and
Bergstrom of the Senate

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

Section 1173. A. Any person who willfully, maliciously, and repeatedly follows or harasses another person in a manner that:

SENATE FLOOR VERSION - HB1002 SFLR
(Bold face denotes Committee Amendments)

1 2. Actually causes the person being followed or harassed to
2 feel terrorized, frightened, intimidated, threatened, harassed, or
3 molested,
4 shall, upon conviction, be guilty of the crime of stalking, which is
5 a felony punishable by imprisonment in the custody of the Department
6 of Corrections for a term not to exceed three (3) years, or by a
7 fine not to exceed Five Thousand Dollars (\$5,000.00), or by both
8 such fine and imprisonment. Any person convicted of a second
9 violation of the provisions of this subsection shall be punished by
10 imprisonment in the custody of the Department of Corrections for a
11 term not to exceed six (6) years, or by a fine not to exceed Ten
12 Thousand Dollars (\$10,000.00), or by both such fine and
13 imprisonment. Any person convicted of a third or subsequent
14 violation of the provisions of this subsection shall be punished by
15 imprisonment in the custody of the Department of Corrections for a
16 term not to exceed twelve (12) years, or by a fine not to exceed
17 Fifteen Thousand Dollars (\$15,000.00), or by both such fine and
18 imprisonment.

19 B. Any person who violates the provisions of subsection A of
20 this section when:

21 1. There is a permanent or temporary restraining order, a
22 protective order, an emergency ex parte protective order, or an
23 injunction in effect prohibiting the behavior described in
24 subsection A of this section against the same party, when the person

1 violating the provisions of subsection A of this section has actual
2 notice of the issuance of such order or injunction;

3 2. Said person is on probation or parole, a condition of which
4 prohibits the behavior described in subsection A of this section
5 against the same party or under the conditions of a community or
6 alternative punishment; or

7 3. Said person, within ten (10) years preceding the violation
8 of subsection A of this section, completed the execution of sentence
9 for a conviction of a crime involving the use or threat of violence
10 against the same party, or against any member of the immediate
11 family of such party,
12 shall, upon conviction, be guilty of a Class B5 felony offense
13 punishable by imprisonment in the custody of the Department of
14 Corrections for a term not to exceed fifteen (15) years, or by a
15 fine not to exceed Twenty Thousand Dollars (\$20,000.00), or by both
16 such fine and imprisonment.

17 C. Any person who:

18 1. Commits a second act of stalking within ten (10) years of
19 the completion of sentence for a prior conviction of stalking; or

20 2. Has a prior conviction of stalking and, after being served
21 with a protective order that prohibits contact with an individual,
22 knowingly makes unconsented contact with the same individual,
23 shall, upon conviction, be guilty of a Class B5 felony offense
24 punishable by imprisonment in the custody of the Department of

1 Corrections for a term not to exceed twenty (20) years, or by a fine
2 not to exceed Twenty-five Thousand Dollars (\$25,000.00), or by both
3 such fine and imprisonment.

4 D. Any person who commits an act of stalking within ten (10)
5 years of the completion of execution of sentence for a prior
6 conviction under subsection B or C of this section shall, upon
7 conviction, be guilty of a Class B4 felony offense punishable by
8 imprisonment in the custody of the Department of Corrections for a
9 term not to exceed twenty-five (25) years, or by a fine not to
10 exceed Thirty Thousand Dollars (\$30,000.00), or by both such fine
11 and imprisonment.

12 E. Evidence that the defendant continued to engage in a course
13 of conduct involving repeated unconsented contact, as defined in
14 subsection ~~F~~ G of this section, with the victim after having been
15 requested by the victim to discontinue the same or any other form of
16 unconsented contact, and to refrain from any further unconsented
17 contact with the victim, shall give rise to a rebuttable presumption
18 that the continuation of the course of conduct caused the victim to
19 feel terrorized, frightened, intimidated, threatened, harassed, or
20 molested.

21 F. Whenever a law enforcement agency receives a complaint of
22 stalking and finds that such conduct has occurred, the law
23 enforcement agency shall be required to notify the victim of the
24 availability to meet with a representative of a certified domestic

1 violence program, as provided for in Section 18p-1 of Title 74 of
2 the Oklahoma Statutes.

3 G. For purposes of determining the crime of stalking, the
4 following definitions shall apply:

5 1. "Harasses" means a pattern or course of conduct directed
6 toward another individual that includes, but is not limited to,
7 repeated or continuing unconsented contact, that would cause a
8 reasonable person to suffer emotional distress, and that actually
9 causes emotional distress to the victim. Harassment shall include
10 harassing or obscene phone calls as prohibited by Section 1172 of
11 this title and conduct prohibited by Section 850 of this title.
12 Harassment does not include constitutionally protected activity or
13 conduct that serves a legitimate purpose;

14 2. "Course of conduct" means a series of two or more separate
15 acts over a period of time, however short or long, evidencing a
16 continuity of purpose, including any of the following:

- 17 a. maintaining a visual or physical proximity to the
18 victim,
- 19 b. approaching or confronting the victim in a public
20 place or on private property,
- 21 c. appearing at the workplace of the victim or contacting
22 the employer or coworkers of the victim,
- 23 d. appearing at the home of the victim or contacting the
24 neighbors of the victim,

- e. entering onto or remaining on property owned, leased, or occupied by the victim,
- f. contacting the victim by telephone, text message, electronic message, electronic mail, or other means of electronic communication or causing the telephone or electronic device of the victim or the telephone or electronic device of any other person to ring or generate notifications repeatedly or continuously, regardless of whether a conversation ensues,
- g. photographing, videotaping, audiotaping, or, through any other electronic means, monitoring or recording the activities of the victim. This subparagraph applies regardless of where the act occurs,
- h. sending to the victim any physical or electronic material or contacting the victim by any means, including any message, comment, or other content posted on any Internet site or web application,
- i. sending to a family member or member of the household of the victim, or any current or former employer of the victim, or any current or former coworker of the victim, or any friend of the victim, any physical or electronic material or contacting such person by any means, including any message, comment, or other content posted on any Internet site or web

1 application, for the purpose of obtaining information
2 about, disseminating information about, or
3 communicating with the victim,

4 j. placing an object on or delivering an object to
5 property owned, leased, or occupied by the victim,

6 k. delivering an object to a family member or member of
7 the household of the victim, or an employer, coworker,
8 or friend of the victim, or placing an object on, or
9 delivering an object to, property owned, leased, or
10 occupied by such a person with the intent that the
11 object be delivered to the victim, or

12 l. causing a person to engage in any of the acts
13 described in subparagraphs a through k of this
14 paragraph.

15 Constitutionally protected activity is not included within the
16 meaning of "course of conduct";

17 3. "Emotional distress" means significant mental suffering or
18 distress that may, but does not necessarily require, medical or
19 other professional treatment or counseling;

20 4. "Unconsented contact" means any contact with another
21 individual that is initiated or continued without the consent of the
22 individual, or in disregard of that individual's expressed desire
23 that the contact be avoided or discontinued. Constitutionally
24 protected activity is not included within the meaning of unconsented

1 contact. Unconsented contact includes but is not limited to any of
2 the following:

- 3 a. following or appearing within the sight of that
4 individual,
- 5 b. approaching or confronting that individual in a public
6 place or on private property,
- 7 c. appearing at the workplace or residence of that
8 individual,
- 9 d. entering onto or remaining on property owned, leased,
10 or occupied by that individual,
- 11 e. contacting that individual by telephone,
- 12 f. sending mail or electronic communications to that
13 individual, and
- 14 g. placing an object on, or delivering an object to,
15 property owned, leased, or occupied by that
16 individual;

17 5. "Member of the immediate family", for the purposes of this
18 section, means any spouse, parent, child, person related within the
19 third degree of consanguinity or affinity or any other person who
20 regularly resides in the household or who regularly resided in the
21 household within the prior six (6) months; and

22 6. "Following" shall include the tracking of the movement or
23 location of an individual through the use of a Global Positioning
24 System (GPS) device or other monitoring device by a person, or

1 person who acts on behalf of another, without the consent of the
2 individual whose movement or location is being tracked; provided,
3 this shall not apply to the lawful use of a GPS device or other
4 monitoring device or to the use by a new or used motor vehicle
5 dealer or other motor vehicle creditor of a GPS device or other
6 monitoring device, including a device containing technology used to
7 remotely disable the ignition of a motor vehicle, in connection with
8 lawful action after default of the terms of a motor vehicle credit
9 sale, loan or lease, and with the express written consent of the
10 owner or lessee of the motor vehicle.

11 SECTION 2. This act shall become effective November 1, 2026.

12 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
13 April 7, 2026 - DO PASS
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